

Tentative Rulings for August 25, 2026 Department 2

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 2 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 143 8184**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2505717	DYNAMARK MONITORING, INC. vs AMERICOM CENTRAL STATION, INC.	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

Summary of Ruling:

The Court grants all Plaintiff's requests for judicial notice but gives such evidence the weight it deserves.

The Court grants Plaintiff's motion for attorney fees at the reasonably reduced amount of \$7,650.00.

The Court denies Plaintiff's motion for costs in full.

Factual / Procedural Context:

On October 6, 2025, Plaintiff Dynamark Monitoring, Inc. dba TriStar Monitoring, LLC ("Plaintiff") filed a Complaint against Defendant Americom Central Station, Inc. for breach of written contract.

On December 2, 2025, the Clerk of the Court entered default against Defendant based on Plaintiff's request.

On March 11, 2026, the Court granted Plaintiff's motion for default judgment and entered default judgment against Defendant.

On March 17, 2026, Defendant moved to set aside and vacate its default and default judgment under C.C.P. § 473, arguing that Plaintiff failed to serve Defendant with the Summons, Complaint, or Request for Entry of Default, or alternatively, that Defendant's failure to respond was a result of mistake, inadvertence, and excusable neglect.

On June 10, 2026, the Court denied Defendant's motion to set aside and vacate the default and default judgment, and awarded Plaintiff "reasonable attorneys' fees incurred in opposing such motion, in an amount to be established by declaration or noticed motion."

Plaintiff now moves for an award of \$49,291.75 in attorney fees using the lodestar method, along with \$2,557.00 in costs, for a total award of \$51,848.75.

In opposition, Defendant argues the Court should reduce the requested award because counsel's hourly rates for expended time are unreasonably excessive, and

numerous time entries are unrelated to the Court's June 10, 2026 order. Defendant further asserts that the Court did not award Plaintiff any costs.

In reply, Plaintiff maintains that the attorney fees and costs are reasonable.

Request for Judicial Notice

Plaintiff seeks judicial notice of several tentative rulings and minute orders in unrelated cases that were decided in Riverside Superior Court to support its argument that counsel's hourly rate is commensurate with those previously awarded in other courtrooms. The Court grants the requests for judicial notice. But gives such evidence no weight because the cited cases involve different issues at varying levels of complexity and are therefore irrelevant to this Court's disposition of this motion.

Analysis

I. Attorney Fees

Attorney fees are awarded when authorized by contract, statute, or law. (C.C.P. § 1033.5(a)(10).) Here, the Court awarded Plaintiff "reasonable attorneys' fees incurred in opposing" Defendant's motion to set aside and vacate default and default judgment. (Ruling, dated June 10, 2026.)

At issue in this motion is the reasonableness of Plaintiff's request. The matter of reasonableness of a party's attorney fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Courts generally consider several factors in determining the reasonableness of a party's attorney fees. These include "the nature of the litigation, the difficulty of the litigation, the attention given to the issues, the success of the attorney's efforts, and time consumed. [Citation omitted.]" (*PLCM Group, Inc. v. Drexler* (1999) 72 Cal.App.4th 693, 708.) Although a fee request ordinarily should be documented in great detail, the court is entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel's declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.) Specifically in exercising its discretion, the Court may consider all the facts and the entire procedural history of the case in setting the amount of a reasonable attorney fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394.)

Lodestar is the objective starting point to determine if attorney fees are reasonable. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hours spent on the case. (*Ibid.*) Lodestar requires the court to determine what a reasonable rate and number of hours expended. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.)

Based on the time records and Declarations of Julie Roback and Michelle Harrell, counsel spent:

<u>Timekeeper</u>	<u>Hours</u>	<u>Rate / Hour</u>	<u>Total</u>
Katherine Balatbat, Partner	0.7	\$900.00	\$630.00
Julie Roback, Senior Counsel	39.0	\$650.00	\$25,350.00
Paralegals	14.45	\$275.00	\$3,973.75
Michelle Harrell, Partner	8.9	\$645.00	\$5,740.50
Henry Longley, Associate	25.9	\$525.00	\$13,597.50
TOTAL	88.95		\$49,291.75

A. Out-of-State Attorneys

“[N]o person may recover compensation for practicing law ‘in California’ unless the person was a member of the State Bar or admitted pro hac vice at the time the services were performed, or the legal services fall within an exception.” (*Golba v. Dick’s Sporting Goods, Inc.* (2015) 238 Cal.App.4th 1251, 1262, citing *Birbrower, Montalbano, Condon & Frank v. Superior Court* (1998) 17 Cal.4th 119, 127; Bus. & Prof. Code, § 6125.) The out-of-state attorney’s services are not compensable solely by hiring local counsel and entering a fee agreement, where the local counsel was not a partner, employee, representative or member of the out-of-state attorney’s firm. (*Id.* at 1268-1270.)

Here, Attorneys Harrell and Longley (“Taft Attorneys”) are out-of-state attorneys who are not members of the California Bar, and hence, according to *Birbrower*, would not be entitled to compensation for legal services performed “in California” in connection with this case, which would be severed from compensable attorney’s fees. (*Birbrower, supra*, 17 Cal.4th at 137 [the contract law of severability in Civ. Code, § 1599 allows illegal portions of the fee agreement pertaining to the unlawful practice of law in California to be severed from those parts which are recoverable].) Taft Attorneys were not admitted pro hac vice in this case until May 7, 2026. Accordingly, none of the time that they incurred prior to their pro hac vice appointment is compensable.

Further, there is no evidence that Taft Attorney’s expended time is reasonable. The records should detail crucial information as to the types of issues involved, services performed, numbers of hours, billing rates, etc. (*Martino v. Denevi* (1986) 182 Cal.App.3d 553, 559.) Here, it is unclear how counsel came up with the numbers for hours spent on specific tasks, as they only state the number of hours spent each month, and include one paragraph with a description of several of the tasks performed in relation to the opposition. This is essentially block billing, which “occurs when ‘a block of time [is assigned] to multiple tasks rather than itemizing the time spent on each task.’” (*Mountjoy v. Bank of America, N.A.* (2016) 245 Cal.App.4th 266, 279.) “Block billing presents a particular problem for a court seeking to allocate between reimbursable and unreimbursable fees, and trial courts are granted discretion ‘to penalize [block billing]

when the practice prevents them from discerning which tasks are compensable and which are not.’ ” (*In re Marriage of Nassimi* (2016) 3 Cal.App.5th 667, 695.)

Further, the tasks that Taft Attorneys list are duplicative and unnecessary. Specifically, Taft Attorneys contend that they incurred time in performing legal research as to service and defaults, assisted the California attorneys with the preparation of the opposition, and worked on the pro hac vice applications. (Harrell, ¶ 15.) However, the California Attorneys also billed for conducting research and the pro hac vice applications. (Roback Decl., Exh. B.) This is double-billing. Thus, the Court strikes all of Attorney Harrell and Longley’s time in full.

B. Hourly Rates

Counsel’s hourly rate does not appear to be reasonable for Riverside County. Counsel for this case are located in Los Angeles County and Southfield, Michigan. Plaintiff makes no showing that it could not obtain local counsel, and therefore, is entitled to out-of-town rates. (*Center for Biological Diversity v. County of San Bernardino* (2010) 188 Cal.App.4th 603, 615-619 [plaintiffs were entitled to Santa Monica rates for counsel when they proved they could not obtain local counsel].)

Further, counsel has not argued how “the nature of the litigation, the difficulty of the litigation, the attention given to the issues, the success of the attorney’s efforts, and time consumed” justifies an hourly rate of \$525.00 to \$900.00. (*PLCM Group, supra*, 72 Cal.App.4th at 708.) The fees in this case were incurred in opposing a motion to set aside default and vacate default judgment, which only involved litigating the basic issue as to whether personal service was valid. Accordingly, the Court reduces the requested hourly rates.

C. Expended Time

There were at least five timekeepers in this case. A court may reduce fees where it is unreasonable to have so many attorneys staffing a case in a non-complex case. (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 38-39.) Here, there was one out-of-state partner, one partner, one senior counsel, one out-of-state associate attorney, and an undefined number of paralegals. There is no indication that the opposition was so complex as to require the higher billing rates of two partners and senior counsel. Accordingly, the Court reduces the hourly rates to that of an associate attorney.

The Court also declines to compensate the time that counsel incurred in Taft Attorneys’ pro hac vice applications, including an ex parte application to advance the hearings on the pro hac vice applications, because they were not reasonably incurred. Neither the pro hac vice applications nor the ex parte application were opposed. Further, the pro hac vice applications were not directly related to the opposition. Specifically, in the Complaint filed on October 6, 2025, Taft Attorneys appear in the caption with the statement, “*Pro hac vice forthcoming.” As such, counsel knew of their need to file pro hac vice applications for Taft Attorneys at least six months prior to their

ex parte application. Thus, the Court strikes 8.7 hours from Attorney Roback's billing, and 9.5 hours from paralegals' billing.

A review of the billing entries also reveals that counsel billed for clerical and administrative tasks, including internal communications with staff and Taft Attorneys, and checking the status of motions and rulings online. Several of these entries were block-billed and redacted, such that the Court is unable to determine whether they were reasonably incurred (e.g., Attorney Roback's billing entries on March 20, 2026). Accordingly, the Court strikes 3.5 hours from Attorney Roback's billing, 0.45 hour from paralegals' billing, and 0.7 hours from Attorney Balatbat's billing.

Counsel also billed for time spent on issues unrelated to the opposition, such as settlement and appeals. Thus, the Court strikes 1.2 hours from Attorney Roback's billing.

Counsel also billed 18.3 hours for filing the instant fee motion. There is no reason why this fee motion should take more than 4.0 hours to draft and defend. Thus, the Court strikes 11.8 hours from Attorney Roback's billing and 1.5 hours from paralegals' billing.

As for the remaining time entries, they are reasonable under the circumstances. Defendants' remaining challenges for unnecessary/overbilled tasks, etc. are not supported. As such, the Court awards the following:

<u>Timekeeper</u>	<u>Hours</u>	<u>Rate / Hour</u>	<u>Total</u>
Katherine Balatbat, Partner	0.0	\$500.00	\$0.00
Julie Roback, Senior Counsel	13.8	\$500.00	\$6,900.00
Paralegals	3.0	\$250.00	\$750.00
Michelle Harrell, Partner	0.0	\$500.00	\$0.00
Henry Longley, Associate	0.0	\$500.00	\$0.00
TOTAL	16.8		\$7,650.00

II. Costs

Under C.C.P. § 473(b), the court is required to direct an attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties only where relief from default judgment is granted based on an attorney's affidavit of fault.

That is not the case here, as the Court denied Defendant's underlying motion for relief from default judgment. Accordingly, the Court, in its discretion, awarded only attorney fees to Plaintiff for prevailing on its opposition to Defendant's motion to set aside default and vacate default judgment.

In its Reply, Plaintiff contends that it is entitled to recover post-judgment costs as a prevailing party. However, Plaintiff cites to no legal authority to support its contention

that defending the validity of an underlying judgment (via opposing a motion to set aside default and vacate default judgment) constitutes post-judgment enforcement.

Plaintiff has failed to provide any legal support for its request for costs. Because the Court expressly did not award costs in its order, the Plaintiff's request is denied for costs in full.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2505836	MILLER vs CORONA-NORCO UNIFIED SCHOOL DISTRICT	DEMURRER ON 2ND AMENDED COMPLAINT

Tentative Ruling:

Summary of Ruling:

The Court grants motion to redact minor child's identifying information.

The Court sustains the demurrer with 30 days leave to amend.

Factual / Procedural Context:

Plaintiff Cindy Miller contends that on 7/9/25, another student pushed Plaintiff's minor child, C.M., causing her to fall and strike her head on a classroom wobble stool. Defendant failed to notify Plaintiff or refer the child for a medical evaluation. Plaintiff expressly disclaims that she is asserting causes of action on behalf of CM. The operative pleading is the Second Amended Complaint (SAC) filed on 5/5/26 for general negligence.

Plaintiff moves to redact any identifying information of CM, since CM is not a named party.

Defendant does not oppose the redaction, but complains about the lack of timely notice of the motion.

Defendant demurs to the negligence claim on the grounds it fails to state facts sufficient and is uncertain. Defendant argues that Plaintiff cites to state a statutory basis for liability. It argues that Government Code section 815 precludes any liability. It contends that the SAC is uncertain because she asserts she is not bringing a claim on behalf of CM, but bases the claim on injuries suffered by CM and the duties owed to CM.

In opposition, Plaintiff contends that Defendant failed to notify Plaintiff of her child's injury, failed to provide accurate information regarding the incident, failed to preserve evidence, failed to provide records request, and negligently handled her complaints. She contends the complaint is not uncertain because of this. She argues that she was not notified of the injury and deprived of information to make prompt medical decisions. She contends Government Code section 820 provides liability.

In reply, Defendant contends Education Code section 44807 provides a duty owed to the student, not parents.

Analysis

I. Motion to Redact Info

Plaintiff is not seeking to proceed anonymously—just her minor child. As the minor child is not a party to the action, there is no requirement for Plaintiff to file as a doe plaintiff. (See *Doe v. Lincoln Unified School District* (2010) 188 Cal.App.4th 758, 767 [allowing plaintiff to sue as a Doe under certain circumstances]; *Department of Fair Employment & Housing v. Superior Court* (2022) 82 Cal.App.5th 105, 111-112 [allowing pseudonym should occur in rare circumstances].) Because the Defendant does not oppose the motion, and Plaintiff is not seeking a pseudonym for herself, the motion is granted.

II. Demurrer

A. Meet & Confer

Code of Civil Procedure sections 430.41 and 435.5 requires a meet and confer process via **phone, videoconference or in person** before filing a demurrer or motion to strike. The meet and confer process requires the moving party to identify the causes of action or allegations subject to attack and the plaintiff must provide legal support for its position. (*Id.* at §§ 430.41(a)(1), 435.5(a)(1).) The demurring party must file a declaration stating the means by which the parties met and conferred, or the responding party failed to respond or meet and confer in good faith. (*Id.* at §§ 430.41(a)(3), 435.5(a)(3).) Defendant complied. (Lechman Decl. ¶5.)

B. Merits

A demurrer tests the legal sufficiency of the pleading, but not the truthfulness of the allegations. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Id.*)

“Tort claims may not be maintained against a public entity unless they are based on a statute or are required by the federal or state constitutions.” (*Lundeen Coatings Corp. v. Department of Water & Power* (1991) 232 Cal.App.3d 816, 832.) Unless provided by statute, a public entity is not liable for an injury. (Govt. Code § 815(a).)

There is no common law tort liability for public entities—only statutory. (*Green Valley Landowners Association v. City of Vallejo* (2015) 241 Cal.App.4th 425, 441-442.) To state a cause of action against a government entity, every fact essential to the existence of statutory liability must be pled with particularity. (See *Searcy v. Hemet Unified School Dist.* (1986) 177 Cal. App. 3d 792, 802.)

A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his or her employment if the act or omission would have given rise to a cause of action against the employee, unless the employee is immune. (Gov. Code, § 815.2.) “[A] public employee is liable for the injuries caused by his act or omission to the same extent as a private person.” (*Id.* at § 820(a).)

The problem, here, is that there are no allegations of duty owed to Plaintiff, rather than her minor child. The SAC cites to Education Code section 44807. Section 44807 provides in pertinent part: “Every teacher in the public schools shall hold pupils to a strict account for their conduct on the way to and from school, on the playgrounds, or during recess.” As stated in *Dailey v. Los Angeles Unified School District* (1970) 2 Cal.3d 741, 474:

While school districts and their employees have never been considered insurers of the physical safety of students, California law has long imposed on school authorities a duty to “supervise at all times the conduct of the children on the school grounds and to enforce those rules and regulations necessary to their protection. [Citations.]” [Citations.] The standard of care imposed upon school personnel in carrying out this duty to supervise is identical to that required in the performance of their other duties. This uniform standard to which they are held is that degree of care “which a person of ordinary prudence, charged with [comparable] duties, would exercise under the same circumstances.” [Citations.] Either a total lack of supervision [citation] or ineffective supervision [citation] may constitute a lack of ordinary care on the part of those responsible for student supervision. Under section 815.2, subdivision (a) of the Government Code, a school district is vicariously liable for injuries proximately caused by such negligence.

Nothing in section 44807 imposes a duty to the parents of a student.

In opposition, Plaintiff raises new theories not pled, mainly spoliation of evidence. There is no cause of action for negligent spoliation of evidence. (*Leuter v. State of California* (2002) 94 Cal.App.4th 1285, 1299.)

As Plaintiff has failed to state facts regarding a duty owed to her directly, the court sustains the demurrer with leave to amend.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2505836	MILLER vs CORONA-NORCO UNIFIED SCHOOL DISTRICT	MOTION TO REDACT MINOR CHILD'S IDENTIFYING INFORMATION

Tentative Ruling:

See Ruling above.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2603386	CROY vs CALIFORNIA BAPTIST UNIVERSITY	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

Summary of Ruling: The Court grants the motion and stays the matter pending the resolution of arbitration.

Factual / Procedural Context:

Richard Croy ("Plaintiff") was hired as California Baptist University's ("Defendant") head basketball coach for their men's team. He resigned on 4/1/26. He argues that Defendant is attempting to impose an invalid non-compete provision in his employment agreement, which contains a liquidated damages/buyout obligation. The complaint asserts two causes of action – declaratory relief and injunctive relief.

Defendant brings this motion seeking to compel arbitration and stay this matter pending the resolution of arbitration. It argues that Plaintiff signed an arbitration agreement, which covers the claims in this lawsuit.

In opposition, Plaintiff argues that the employment agreement is invalid due to a non-compete clause. He contends the non-complete clause makes Defendant's arbitration agreement invalid too. He also asserts that the arbitration agreement is unconscionable.

In reply, Defendant contends that the arbitration agreement is not unconscionable. It argues that Plaintiff's argument on the merits of his claim is irrelevant to the determination as to whether there is a binding arbitration agreement.

Analysis:

The court must grant a petition to compel arbitration unless it finds either: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds exist for revocation of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (CCP

§1281.2.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co.* (1975) 14 Cal.3d 473, 479.)

The petition to compel must set forth the provisions of the written agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (Cal. R. Ct. 3.1330; see *Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218–219.) “[U]nless there is a dispute over authenticity, it is sufficient for a party moving to compel arbitration to recite the terms of the governing provision.” (*Sprunk v. Prisma LLC* (2017) 14 Cal.App.5th 785, 793.) A petitioner is not required to authenticate the respondent’s signature on an arbitration agreement as a preliminary matter in the moving papers and is only required to do so if the signature is challenged. (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 846.)

When a party moving to compel arbitration provides a copy of the alleged arbitration agreement that it purports to have the plaintiff’s signature, it meets its initial burden. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755.) This burden has been met by Defendant. Defendant provides a copy of the arbitration agreement that appears to have Plaintiff’s signature. The agreement applies to “all claims arising out of the Employee’s application or candidacy for employment, employment with CBU and/or termination thereof, including, but not limited to claims for breach of contract (express or implied); . . . all claims for benefits; and claims for violation of any of the federal, state, or other government law, statute, regulation, or ordinance, . . .” (California Baptist University Arbitration Agreement, ¶ 1.). This agreement would cover the claims at issue in the complaint – the parties’ dispute regarding the employment agreement.

Plaintiff now has the burden to offer admissible evidence creating a factual dispute as to the authenticity of the signature. (*Iyere, supra*, 87 Cal.App.5th at 755.) He does not meet this burden. He does not dispute he signed the arbitration agreement. Instead, he argues that because the non-complete provision in the employment agreement is invalid, this makes the arbitration agreement invalid. Plaintiff cites to no authority that supports this assertion. Plaintiff’s reliance on *Loving & Evans v. Blick* (1949) 33 Cal.2d 603 is misplaced. This case pertained to a matter where the entire contract that contained an arbitration agreement was unlawful. (*Id.* at 609.) Plaintiff only argues the non-competition clause is unlawful. The employment agreement contains a severance provision, which specifically states “[e]ach term, condition, covenant or provision of this Agreement will be viewed as separate and distinct, and in the event that any such term, covenant or provision will be held by an arbitrator or a court of competent jurisdiction to be invalid, or is otherwise determined to be invalid or unenforceable, the remaining provision will constitute in full force and effect.” (Employment Agreement, ¶ 14.) As such, the parties have agreed to sever any invalid provisions and any defect with the non-compete provision would be severable. Additionally, “[i]f only a part of the contract is illegal, then the arbitrator decides the illegality issue.” (*Hotels Nevada, LLC v. Bridge Banc, LLC* (2005) 130 Cal.App.4th 1431, 1437.) As such, Plaintiff’s argument regarding illegality of the non-compete provision lacks merit.

Unconscionability:

Plaintiff also contends the agreement is unconscionable and asserts the motion should be denied on this basis. “Unconscionable arbitration agreements are not enforceable.” (*Wherry v. Award, Inc.* (2011) 192 Cal.App.4th 1242, 1245.) “To be voided on this ground, the agreement must be both procedurally and substantively unconscionable.” (*Ibid.*) “But they need not be present to the same degree.” (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114 (*Armendariz*)). Rather, the court invokes a “sliding scale” to determine unconscionability: “The more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” (*Ibid.*) “The burden of proving unconscionability rests upon the party asserting it.” (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 126.) Unconscionability is a question of law. (*Malone v. Superior Court* (2014) 226 Cal.App.4th 1551, 1562.)

Procedural unconscionability may be proven by showing oppression which is present when a party is given no meaningful opportunity to negotiate the terms of the contract which is presented on a take-it-or-leave-it basis. (*Wherry v. Award, Inc.*, *supra*, 192 Cal.App.4th at 1246.) Plaintiff contends that the arbitration agreement is procedurally unconscionable because it is a contract of adhesion. A contract of adhesion is a standardized contract that relegates the individual with less bargaining strength to take the agreement without negotiating the terms. (*Walnut Producers of California v. Diamond Foods, Inc.* (2010) 187 Cal.App.4th 634, 646.) However, Plaintiff provides no evidence that this is a contract of adhesion. No evidence is provided that he could not negotiate the terms of the employment or arbitration agreement. Defendant provides evidence that the employment agreement was negotiated between Plaintiff and Defendant. (Declaration of Dr. Ronald Ellis, ¶¶ 4 and 5.) This is the only argument made to support procedural unconscionability. Since no procedural unconscionability has been shown, Plaintiff’s entire unconscionability argument fails and this motion is granted.